

ELIZABETH II**1990 CHAPTER v**

An Act to relieve the Buckinghamshire County Council of their statutory duty to establish a new county secondary school at Shenley Church End in Buckinghamshire. [22nd February 1990]

WHEREAS—

(1) The Council of the County of Buckinghamshire (hereinafter referred to as “the Council”) are the education authority for the county of Buckinghamshire (hereinafter referred to as “the county”):

(2) The Council published under section 12 of the Education Act 1980 (which relates to the establishment, discontinuance and alteration of schools by local education authorities) proposals for the establishment of a new county secondary school at Shenley Church End in the county and determined to implement those proposals under subsection (7) of that section: 1980 c. 20.

(3) Under subsection (9) of that section, the Council were under a duty to implement those proposals but they applied to the Secretary of State for a modification of the proposals to defer the date of implementation:

(4) The Secretary of State modified the proposals accordingly, and the Council are under a duty to implement the proposals as modified:

(5) Following extensive public consultation the Council now desire not to establish a new county secondary school at Shenley Church End but to relocate there an existing county secondary school, namely Denbigh School:

(6) It is expedient that Denbigh School be relocated to Shenley Church End and that the Council be relieved of their duty to establish a new county secondary school there:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

1972 c. 70.

(8) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Buckinghamshire County Council Act 1990.

Removal of duty to establish new school.

2. Notwithstanding the matters recited in paragraphs (2) to (4) of the Preamble to this Act, it shall not be the duty of the Buckinghamshire County Council to establish a new county secondary school at Shenley Church End in Buckinghamshire.

PRINTED IN ENGLAND BY PAUL FREEMAN
Controller and Chief Executive of Her Majesty's Stationery Office and
Queen's Printer of Acts of Parliament